

Curriculum Outline - Montana RASS

Phase 4 deliverable. Maps every module to the ARM 42.13.907(1) content checklist and the MCA 16-4-1006 statutory requirements.

On-Premises Track (mt-alcohol, ≥120 min)

Module	Title	Hours	ARM 42.13.907(1) (a) (effects of alcohol)	(b) (standard drinks)	(c) (identifying underage/intoxicated)	(d) (strategies of underage)	(e) (acceptable IDs)	(f) (prevent incidents)
00	Welcome and Course Overview	0:05	-	-	-	-	-	-
01	Alcohol and the Body	0:15	✓	✓	✓	-	-	-
02	Recognizing Intoxication and Refusing Service	0:25	✓	-	✓	✓	-	✓
03	Checking IDs (Including Digital IDs)	0:20	-	-	✓	✓	✓	✓
04	Sales to Minors	0:10	-	-	-	✓	✓	✓
05	Dram Shop and the Three Liability Types	0:20	-	-	-	-	-	✓
06	Hours, Promotions, and Montana License Categories	0:15	-	-	-	-	-	✓
07	Montana DUI Law and the Server's Role	0:15	✓	-	✓	-	-	✓
08	Montana-Specific Training Supplement	0:10	-	-	-	-	-	-

Total: 2:15 (135 minutes), exceeding the HB 157 statutory floor of 120 minutes.

Off-Premises Track (mt-alcohol-offsale, ≥60 min)

Module	Title	Hours	(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)
00	Welcome and Course Overview	0:05	-	-	-	-	-	-	-	-
01	Alcohol Effects and Spotting Impaired Purchasers at the Register	0:10	✓	✓	✓	-	-	✓	-	✓
02	Checking IDs (Including Digital IDs)	0:15	-	-	✓	✓	✓	✓	-	✓
03	Sales to Minors and Decoy Tactics	0:10	-	-	-	✓	-	✓	-	✓
04	Brief Dram Shop and the Sale-to-Visibly-Intoxicated Rule	0:05	-	-	✓	-	-	✓	-	✓
05	Hours, Sealed Containers, and the HB 211 Delivery Overlay	0:10	-	-	-	-	-	✓	-	-
06	Montana Off-Premises Supplement	0:05	-	-	-	-	-	-	-	-

Total: 1:00 (60 minutes), hitting the HB 157 statutory floor exactly.

Module-by-module summary

On-Premises Track

Module 01: Welcome and Course Overview (5 min) What this course covers, who must take it, the 60-day-from-hire and 3-year renewal cycle (MCA 16-4-1005), the on/off split, and how the certificate works as the credential.

Module 02: Alcohol and the Body (15 min) Montana's >0.5% ABV definition (MCA 16-1-106(4)). Standard drink equivalency. BAC absorption rates and the factors that change them (sex, weight, food, medication, rate). The liver clears ~0.015 BAC per hour. Tolerance vs. impairment.

Module 03: Recognizing Intoxication and Refusing Service (25 min) Montana's two parallel service-side standards: MCA 16-3-301(4)(b) prohibits selling to a person "actually, apparently, or obviously intoxicated" (the three-prong test). MCA 16-6-304 separately prohibits selling, serving, or giving alcohol to a person "apparently under the influence of alcohol" (the single-prong test). Refuse if either standard is met. Behavioral cues (slurred speech, repetition, loss of inhibition, mood swings) and physical cues (glassy eyes, unsteady walk, smell, flushed face). The intervention ladder (slow down, switch, food, refuse, document). Scenario: cutting off a regular customer.

Module 04: Checking IDs (20 min) ARM 42.13.902 acceptable list with graphic of each: state/Canadian DLs, armed-service IDs, passports, MT temporary/probationary, MT tribal IDs, government-certified digital IDs (HB 196). Digital ID check sequence (tap-and-present, official seal, screenshot is not acceptable). DOB math at the register. Red flags on physical IDs. Scenario: borderline DOB calculation.

Module 05: Sales to Minors (10 min) MCA 16-6-305(1) general rule. ARM 42.13.101 progressive penalty schedule (\$250 / \$1,000 / \$1,500+suspension / revocation). MCA 16-6-305(1)(a) narrow statutory exceptions: provision in a nonintoxicating quantity by parent/guardian, physician/dentist (medicinal), licensed pharmacist (with prescription), or ordained minister/priest (religious observance). "Intoxicating quantity" defined in MCA 16-6-305(1)(c). MCA 16-3-301(6) placard requirement. Common minor tactics (borrowed ID, proxy buyer, distraction, fake online ID).

Module 06: Dram Shop and the Three Liability Types (20 min) Three liability types (criminal, civil, administrative). MCA 27-1-710 three-trigger framework (underage with no reasonable check, visibly intoxicated, forced/coerced consumption). \$250K caps on noneconomic + punitive damages per event. Economic damages uncapped. Certified-mail notice within 180 days of the sale or service. 2-year SOL from the sale or service. MCA 27-1-710(6) bar on hypothetical-BAC, post-service, and happy-hour evidence at the visible-intoxication moment. Scenario: routine service that ends in a crash.

Module 07: Hours, Promotions, and Montana License Categories (15 min) MCA 16-3-304 hours (8am-2am closed window). MCA 16-2-104 agency liquor store hours. No-below-posted-price rule. Promotion compliance: comply with posted-price, advertising, and DOR/CARD rules; do not run BOGOs/free-drink/comp campaigns unless licensee confirms compliance and obtains any required approval. License

categories (all-beverage, restaurant beer/wine, off-prem beer/wine, manufacturer, catering, special permit). MCA 39-2-306 minimum age 18 to bartend/serve. HB 211 third-party delivery overlay.

Module 08: Montana DUI Law and the Server's Role (15 min) MCA 61-8-1002 per-se BACs (0.08 noncommercial / 0.04 commercial / 0.02 under-21 / 5 ng-mL THC). Aggravated DUI threshold (0.16 per MCA 61-8-1001). MCA 61-8-1016 implied consent (6mo first refusal / 1yr second). MCA 61-8-1007 penalty escalation (1st through 3rd offenses); MCA 61-8-1008 felony at 4th and subsequent offenses (statute counts priors without a temporal lookback limit). Server toolkit: rideshare on the house, call a friend, hold keys, document.

A standalone Montana Statute Reference Supplement (Title 16, 27, 39, 45, 61, and ARM 42.13.101 / 42.13.901-907) accompanies this submission as `mt-supplement.md` for regulator review. It is NOT a student-facing module — students see the citations in context inside Modules 01-08.

Off-Premises Track

Module 01: Welcome (5 min) - off-premises track basics, the on/off split.

Module 02: Alcohol Effects + Spotting Impaired Purchasers (10 min) - >0.5% ABV definition, register-side intoxication cues, MCA 16-3-301(4)(b) at the point of sale.

Module 03: Checking IDs (15 min) - ARM 42.13.902 list including digital IDs (HB 196), DOB math at the register, red flags.

Module 04: Sales to Minors and Decoy Tactics (10 min) - ARM 42.13.101 penalties, MCA 16-6-305 personal misdemeanor, proxy buyers, shoulder-taps, compliance checks.

Module 05: Brief Dram Shop (5 min) - MCA 27-1-710 applied to off-prem retail, refusal at the register.

Module 06: Hours, Sealed Containers, HB 211 Delivery (10 min) - MCA 16-3-304 hours, sealed-container takeout, agency stores, no-below-posted-price, HB 211 delivery driver rules.

The Montana Statute Reference Supplement above accompanies the off-premises submission as well — a single regulator-facing PDF, not a student-facing module.

Final exams

On-Premises: 40 multiple-choice questions per attempt drawn from a 64-question pool. 80% pass (32 of 40). Retake policy per ARM 42.13.907 (eff. March 7, 2026 per MAR Notice 2025-292.3 (adopting the amended proposal in MAR Notice 2025-292.2)): a first-attempt score of 70-79% allows retake of the final exam only; a first-attempt score below 70% requires retaking the entire program before another final-exam attempt. Selection guarantees a code-enforced minimum number of questions for every Knowledge and Performance outcome each attempt; because every module's content maps to those module-specific outcomes, every module is represented each attempt.

Off-Premises: 25 multiple-choice questions per attempt drawn from a 40-question pool. 80% pass (20 of 25). Same ARM 42.13.907 retake policy as on-premises.

ARM 42.13.906(4)(b) interactivity ("videos, scenarios, or games")

Every learning module includes:

- Text + audio support (English MP3 narration; Spanish browser text-to-speech fallback)
- Branching scenarios in modules 02, 03, 04, 05 (on-premises) and 03 (off-premises)
- NotebookLM video and podcast overviews per module (where authored)
- AI Study Buddy chat widget (course-flavored, on-topic only)

Plus the standalone Montana supplement module + PDF.